

# **TENTATIVE RULING(S) FOR June 11, 2026**

## **Department S37 – Judge Winston Keh**

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See [www.sb-court.org/general-information/remote-access](http://www.sb-court.org/general-information/remote-access) ).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

**If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.**

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

**UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

**CIVSB2417237**

**CONNER V. CITY OF ONTARIO**

---

### **TENTATIVE RULING(S):**

On May 15, 2024, Plaintiff Avondre Conner filed this action against Defendant City of Ontario. The operative first amended complaint (FAC) alleges causes of action for (1) discrimination; (2) harassment; (3) retaliation; (4) failure to investigate and prevent discrimination, harassment, and retaliation; and (5) violation of Labor Code sections 98.6 and 1102.5. The case is at issue with a Motion for Summary Judgment scheduled for August 4, 2026.

On February 9, 2026, Plaintiff filed this motion to quash deposition subpoenas issued to two of Plaintiff's prior employers: (1) The People Concern; and (2) Delta Airlines. Defendant opposes. There is no reply as of Wednesday, June 10, 2026, at 9:52 a.m.

## ANALYSIS

### Statement of Law

Code of Civil Procedure section 1987.1, subdivision (a), states:

If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.

A party, witness, consumer, employee, or person whose personally identifying information is sought may bring the motion. (Code Civ. Proc., §1987.1, subd. (b).)

No meet and confer effort is required to bring a motion to quash. (Code Civ. Proc., §1987.1.)

Sanctions against the losing party are discretionary, pursuant to Section 1987.2, if the court finds the motion was made or opposed in bad faith or without substantial justification, or if one or more of the requirements of the subpoena was oppressive. (Code Civ. Proc., §1987.2.) When a trial court exercises its discretion to issue discovery sanctions, the court must delineate the specific acts upon which the sanctions are awarded. (*First City Properties, Inc. v. MacAdam* (1996) 49 Cal.App.4th 507, 515.)

*Separate statement.* As a threshold matter, Defendant asks the Court to deny the motion for failure to provide a separate statement under California Rules of Court, rule 3.1345(a)(5). Enforcement of this rule is discretionary (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 409, fn. 14), and given the limited matters at issue here a separate statement would not be particularly helpful or useful. Therefore, the Court will address the motion on its merits.

*On the merits.* The subpoenas issued to both The People Concern and Delta Air Lines each seek all documents relating to Plaintiff's dates of employment, including but not limited to offer letters, employment agreements, and separation notices. The subpoena issued to The People Concern also seeks all documents demonstrating who Plaintiff's supervisors were during his employment with that entity. (Hirsch Decl., Exhs. A, B.)

Plaintiff argues the records are protected by his constitutional right to privacy; because Defendant cannot establish a compelling need for the records; because the records are not directly relevant to this litigation; and because there are less intrusive methods of obtaining the information.

In opposition, Defendant presents evidence in an effort to show Plaintiff has not been fully forthcoming or truthful during discovery regarding certain details of his prior employment in the following respects:

- Plaintiff's application to work for Defendant stated he attended Santa Monica College from 2013 to 2016, but a subsequent application to Southern California Health & Rehabilitation Program (SCHARP) omitted this reference. (Clark Decl., Exhs. F, G.)
- Plaintiff's application to work for Defendant indicated he was employed with Delta from "3/2022-Present", but his SCHARP application instead indicated Plaintiff was employed with Safe Parking LA from March 2022 through 2025. (Clark Decl., Exhs. F, G.) Defendant contends this is inaccurate because Plaintiff only commenced work with Safe Parking LA in March 2024 as evidenced by an offer letter from that entity. (Clark Decl., Exh. D.) Plaintiff testified he did not work for Delta and Safe Parking concurrently. (Clark Decl., Exh. H, 245:4-10.)
- Plaintiff's application to work for Defendant indicated Joanna Brandt was his supervisor at The People Concern, but his SCHARP application listed Shatisha Mann. (Clark Decl., Exhs. F, G.) Plaintiff testified Mann is his mother who did not work for The People Concern. Rather, Plaintiff testified he worked "with" Mann, who

apparently worked for “the public health department” at the time. (Clark Decl., Exh. H, 237:3-18.) Mann also completed a Professional Reference questionnaire in connection with Plaintiff’s application to SCHARP, listing herself as “Former Director The P” with the remainder of this response cut off. (Clark Decl., Exh. F.) Defendant contends the cut off language indicated Mann stated she was former director of The People Concern.

- On his SCHARP application, Plaintiff listed Mann separately as both a personal and professional reference who he had been acquainted with for five years even though both categories asked for *unrelated* references. (Clark Decl., Exh. F.) Plaintiff also listed Mann as a professional reference on his application to work for Defendant. (Clark Decl., Exh. G.)

Individuals have a constitutional right of privacy that protects their information. (*Williams v. Superior Court (Marshall's of CA, LLC)* (2017) 3 Cal.5th 531, 552.) A privacy interest is invaded if there is “a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious.” (*Ibid.*; *Hill v. National Collegiate Athletic Assn* (1994) 7 Cal.4th 1, 35-37.)

When discovery seeks information implicating the constitutional right of privacy, the standard of review will depend on the seriousness of the invasion, i.e., a compelling interest applies if the privacy invasion concerns an interest fundamental to personal autonomy but otherwise a balancing test based on the strength of the privacy interest, the seriousness of the invasion, and the availability of alternatives and protective measures. (*Williams, supra*, 3 Cal.5th at p. 552; *Lewis v. Superior Court (Medical Board of California)* (2017) 3 Cal.5th 561, 572.)

Although Plaintiff contends the compelling interest standard applies, the privacy interest is insufficient to warrant that standard. While Plaintiff maintains a privacy interest to his employment records, the scope of records sought here are relatively narrow. Defendant only seeks documents reflecting Plaintiff’s dates of employment, including but not limited to offer

letters, employment agreements, and separation notices, as well as documents showing who Plaintiff's supervisors were at The People Concern. This certainly does not implicate an interest fundamental to personal autonomy, rendering the privacy determination subject to a balancing test.

Defendant demonstrates Plaintiff was either dishonest or at minimum shaded the truth on one or more of his employment applications, including possibly his application to work with Defendant. Plaintiff's argument that the material can be obtained through less intrusive means fails because Plaintiff himself has shown a capacity to be dishonest in this respect as evidenced by the discrepancies in the application, leaving the only way to verify the information by obtaining the records directly from the third parties involved.

In *Sirota v. Penske Truck Leasing Corp.* (N.D.Cal. Mar. 16, 2006, No. C 05-03296 SI) 2006 LX 75808, the plaintiff alleged he suffered harassment and retaliation after taking disability leave.

(*Id.* at \*1-2.) The defendant subpoenaed two of the plaintiff's former employers. While acknowledging California's recognition of a limited privacy right in employee records, the Court noted the plaintiff's privacy interest was "vastly reduced" because he had initiated the lawsuit.

(*Id.* at \*6-7.) The District Court further found the plaintiff's privacy interest was further reduced because he gave the defendant permission to contact former employers when he applied to work with the defendant. (*Id.* at \*7.) The District Court concluded the relevance of the employment records outweighed any privacy intrusion. (*Ibid.*)

It appears the sought after information is relevant to the eighth affirmative defense asserted in Defendant's answer. The evidence sought is therefore reasonably likely to lead to admissible evidence and Defendant's interest in disclosure is sufficiently strong to overcome the privacy interest. Therefore, Plaintiff's Motion to Quash is DENIED.